

7 & 8 ELIZ. 2

No. 1

A MEASURE passed by the National Assembly of the Church of England

To make further provision for the government of the Cathedral Church of Truro, to repeal the Truro Chapter Act, 1878, and to repeal the Truro Bishopric and Chapter Acts Amendment Act, 1887, and to re-enact with amendments certain of its provisions.

[25th March, 1959]

Saint Mary's aisle is the parish church.

1.—(1) Saint Mary's aisle is substituted for the old parish church of Saint Mary in Truro and is the parish church, and has all the rights and privileges of the old parish church.

(2) No portion of the cathedral church other than Saint Mary's aisle, or of the site thereof or of the surrounding yard or enclosure thereto, is subject to any rights of the rector or patron of the parish church, and the whole of the cathedral church with the exception of Saint Mary's aisle is deemed the cathedral church in the same manner and as fully as if no part thereof had ever been used as a parish church:

Provided that nothing in this subsection shall be construed as affecting any rights possessed by the holders of the offices of rector or patron of the parish church in any capacity other than that of rector or patron.

Vesting of cathedral church in dean and chapter.

2.—(1) The cathedral church together with the land adjoining the same which immediately before the passing of this Measure was vested in the bishop as trustee for the purposes of the cathedral church is hereby transferred to and vested in the dean and chapter. The dean and chapter shall hold such land as trustee for the same purposes.

(2) The rector and any minister officiating in the parish church and all other persons reasonably authorised by the rector may use the vestries and lavatories belonging to the cathedral church and shall have access thereto through the cathedral church.

Dean to be rector of parish church.

3.—(1) The dean shall be rector of the parish church and shall possess all the rights and perform all the duties belonging to the office of rector before the commencement of this Measure.

(2) The right of patronage in the parish church, which before the commencement of this Measure belonged to the bishop, is hereby transferred to and vested in Her Majesty.

4.—(1) The bishop at the request of the dean and chapter or the rector may make in writing under his hand regulations as to the hours of celebrating the services in the cathedral church and the parish church respectively, and the use of the bells, to which all persons affected by them shall conform.

Regulation of services in cathedral church and parish church.

(2) Any question as to the interpretation of such regulations shall be referred to the bishop, whose decision thereon shall be final.

5. The dean and chapter may, subject to any direction of the bishop, permit the rector or any minister officiating on his behalf or as his curate to perform and solemnise any of the services or offices of the Church and to give notices and to publish banns of marriage in any part of the cathedral church which is not within the limits of the parish church, and all services and offices so performed and solemnised and all notices so given, and all banns of marriage so published shall be deemed to have been performed, solemnised, given or published in the parish church, and in the case of marriages, baptisms and burials shall be registered in the registers of the parish church:

Performances of services and giving of notices and publications of banns in cathedral church in place of parish church.

Provided always that all fees, dues, and emoluments payable in respect of any such services, notices and publication of banns of marriage shall belong and be paid to the respective persons who would have been entitled thereto if the services and offices had been performed and solemnised or the notices had been given, or the banns of marriage had been published in the parish church.

6. The like authority shall be required for making any alterations or additions to the fabric of Saint Mary's aisle or to the monuments or ornaments therein as is required for making such alternations or additions to or in the other parts of the cathedral church:

Alterations or additions to the fabric of Saint Mary's aisle or monuments or ornaments therein.

Provided that the dean and chapter shall not give authority for any alteration or addition to or in Saint Mary's aisle until one month after notice in writing of the intended alteration or addition has been sent to the secretary of the parochial church council of the parish church and in deciding whether or not to give such authority the dean and chapter shall take into account any representation made by the parochial church council.

7. The consenting body for the purposes of the Cathedral Measures, 1931 and 1934, shall be the dean and chapter and paragraph (ii) of subsection (1) of section three of the Cathedral Measure, 1931, is hereby repealed.

Consenting body.
21 & 22 Geo. 5, No. 7.

Scheme
under the
Cathedral
Measures,
1931 and
1934.

8.—(1) As soon as may be after the passing of this Measure the Commission appointed by the Church Assembly at its Summer Session, 1957, in pursuance of section seventeen of the Cathedrals Measure, 1931, shall submit to Her Majesty in Council a scheme under the Cathedral Measures, 1931 and 1934, to bring the Constitution and Statutes of the cathedral church into conformity with the provisions of this Measure.

(2) This section shall come into operation immediately on the passing of this Measure, and the Scheme referred to in the preceding subsection shall come into operation immediately upon the execution of the instrument referred to in section nine of this Measure, and thereupon the Scheme made under the Cathedral Measures, 1931 and 1934, and confirmed by an Order in Council dated the 18th day of December, 1936, containing the Constitution and Statutes for the government of the cathedral church shall cease to have effect.

Commence-
ment.

9.—(1) As soon as both the following conditions are fulfilled, that is to say:—

- (i) there is a vacancy in the office of rector ; and
- (ii) notice of the confirmation by Order in Council of the scheme referred to in section eight of this Measure has appeared in the London Gazette in pursuance of paragraph (v) of subsection (1) of section six of the Cathedrals Measure, 1931 ;

the bishop shall certify the same by an instrument under his hand and seal, and this Measure, except section eight hereof, shall come into operation immediately upon the execution of the said instrument.

(2) The said instrument when executed shall be deposited in the registry of the diocese of Truro and shall there remain unless and until the bishop with the consent of the dean and chapter shall make other provision for its safe custody.

Interpretation. 10. In this Measure the following expressions have the meanings respectively assigned to them:—

“ Saint Mary’s aisle ” means that part of the cathedral church which lies to the south of the south choir aisle and to the east of the south transept and which in the Truro Bishopric and Chapter Acts Amendment Act, 1887, was referred to as the south aisle ;

“ the bishop ” means the Bishop of Truro and includes during a vacancy in the see of Truro the Guardian of the spiritualities thereof ;

“ the cathedral church ” means the cathedral church of Saint Mary in Truro :

“ the dean ” means the dean of the cathedral church ;

“ the dean and chapter ” means the dean and chapter of the cathedral church ;

“ the parish church ” means the parish church of Saint Mary in Truro ;

“ the rector ” means the rector of the parish church.

11. The Truro Chapter Act, 1878, and the Truro Bishopric Repeal and Chapter Acts Amendment Act, 1887, are hereby repealed. ^{41 & 42 Vict. c. 44.}

12. This Measure may be cited as the Truro Cathedral Short title Measure, 1959.

7 & 8 ELIZ. 2

No. 2

A MEASURE passed by the National Assembly of the Church of England

To enable the guardian of the spiritualities of a see to act during a vacancy thereof in place of the bishop for the purposes of certain enactments and for purposes connected therewith. [25th March, 1959]

1. In the case of the transfer of the right of patronage by scheme under the provisions of the Acts mentioned in the Schedule to this Measure any consent of a bishop or an archbishop required to be given under the provisions of the relevant section of the first of those Acts may during a vacancy of the see of the bishop or archbishop be given by the guardian of the spiritualities of the see. ^{Transfer of rights of patronage by scheme.}

2.—(1) Any references to a bishop in the Private Chapels Act, 1871, shall during a vacancy of the see of the bishop be deemed to be references to the guardian of the spiritualities of the see. ^{Private chapels.}

(2) Any reference to the ordinary in the last mentioned Act shall in the case of a chapel whereof a bishop is the ordinary be deemed during a vacancy of the see of the bishop to be a reference to the guardian of the spiritualities of the see.

Loans to incumbents.

3. In the case of a loan to the incumbent of a benefice whereof a bishop is the ordinary any notification or consent required to be given to or by the ordinary under the regulations contained in the Second Schedule to the Loans (Incumbents of Benefices) Amendment Act, 1918, or under any regulations replacing varying or amending the same may during a vacancy of the see of the bishop be given to or by the guardian of the spiritualities of the see.

Stipends of curates.

4. Any references to a bishop in the provisions of Part II of the Benefices (Ecclesiastical Duties) Measure, 1926 (which Part makes provision for the stipends of curates) shall during a vacancy of the see of the bishop be deemed to be references to the guardian of the spiritualities of the see.

Sequestrations.

5.—(1) Any references to a bishop in the Benefices (Sequestrations) Measure, 1933, shall during a vacancy of the see of the bishop be deemed to be references to the guardian of the spiritualities of the see.

(2) During a vacancy of a see an archdeacon shall be capable of exercising all powers delegated to him under the provisions of subsection (3) of section two of the last mentioned Measure which were capable of being exercised by him immediately before the vacancy occurred, provided that the guardian of the spiritualities of the see may revoke any such delegation.

Houses of residence of cathedrals.

6. Any references to a bishop in the Cathedrals (Houses of Residence) Measure, 1936, shall during a vacancy of the see of the bishop be deemed to be references to the guardian of the spiritualities of the see.

Provisions in relation to the Ecclesiastical Leasing Acts.

7.—(1) Any references to a bishop in subsection (1) or subsection (3) of section eight of the Ecclesiastical Commissioners (Powers) Measure, 1936 (which contains provisions in relation to the Ecclesiastical Leasing Acts in the case of the vacancy of a benefice or see) shall during a vacancy of the see of the bishop be deemed to be references to the guardian of the spiritualities of the see.

(2) The following subsection shall be substituted for subsection (2) of section eight of the Ecclesiastical Commissioners (Powers) Measure, 1936:—

“(2) Any notice required to be given to a bishop under the provisions of the Ecclesiastical Leasing Acts may during a vacancy of the see of the bishop be given to the guardian of the spiritualities of the see.”

8. In sub-section (10) of section one of the Ecclesiastical Tables of Commissioners (Powers) Measure, 1938 (which provides for the parochial fees. establishment of tables of parochial fees) the following definition shall be substituted for the definition of the expression "the bishop":—

"In relation to any parish as aforesaid 'the bishop' shall mean the bishop of the diocese in which such parish is situated and during a vacancy of the see shall include the guardian of the spiritualities of the see."

9. This Measure may be cited as the Vacancies in Sees Measure, Short title. 1959.

SCHEDULE

ACTS RELATING TO THE TRANSFER OF RIGHTS OF PATRONAGE BY SCHEME

Section 1.

Short Title	Relevant Section
Ecclesiastical Commissioners Act, 1840	73
Ecclesiastical Commissioners Act, 1841	22
Ecclesiastical Commission Act, 1868	12
Church Patronage Act, 1870	1



Table of Enactments referred to in this Measure

Short Title	Session and Chapter
Ecclesiastical Commissioners Act, 1840	3 & 4 Vict. c. 113.
Ecclesiastical Commissioners Act, 1841	4 & 5 Vict. c. 39.
Ecclesiastical Commission Act, 1868	31 & 32 Vict. c. 114.
Church Patronage Act, 1870	33 & 34 Vict. c. 39.
Private Chapels Act, 1871	34 & 35 Vict. c. 66.
Loans (Incumbents of Benefices) Act, 1918 ...	8 & 9 Geo. 5. c. 42.
Benefices (Ecclesiastical Duties) Measure, 1926...	16 & 17 Geo. 5. No. 8.
Benefices (Sequestrations) Measure, 1933 ...	23 & 24 Geo. 5. No. 1.
Cathedrals (Houses of Residence) Measure, 1936	26 Geo. 5 & 1 Edw. 8. No. 4.
Ecclesiastical Commissioners (Powers) Measure, 1936	26 Geo. 5 & 1 Edw. 8. No. 5.
Ecclesiastical Commissioners (Powers) Measure, 1938	1 & 2 Geo. 6. No. 4.

